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General Comment

I am an average American who cares deeply for the arts, and hopes to one day be a published author. I have worked hard for the artistic skills I have for writing, and I deeply respect the hard work and dedication artists of all stripes have put into learning their crafts. Their art is a valued, beloved and lucrative cornerstone of American culture and American cultural exports abroad.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American artists' livelihoods, their small businesses, with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. The work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without their consent or any compensation. They ingest artists' and small business owners' work, reassemble it, and then sell it back to their clients – directly competing with them and cutting them out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

Which is patently ridiculous. Fair use of copyright material is commonly understood as works that critique or comment on a work, journalistic reporting, research, nonprofit education reuse, or parody purposes. How is feeding copyright material into a machine that then regurgitates the material back out like a cat hacking up a hairball? As the hairball is recognizably hair, these generative AI systems are still recognizably ripping off original, copyrighted works. Generative AI is barely a step above posting a movie to YouTube in 12 ten-minute parts with a watermark over the clips to avoid a DMCA take down.

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

This will create an atmosphere directly harmful to American arts and businesses. Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems. American creators deserve the option to protect their work and decide for themselves whether to sell AI rights to their work.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Their work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated. After all, everyone deserves to know what has gone into the databases that this code draws upon to chop up and remix original material.

I am not anti-technology or anti-AI. I am impressed by the capabilities of these AI systems, and can see their use for many things. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.

Thank you for the opportunity to comment on these important issues.